

Supreme Court of the State of New York
Appellate Division, First Judicial Department

Present – Hon. Saliann Scarpulla,
Barbara R. Kapnick
Ellen Gesmer
Julio Rodriguez, III,

Justice Presiding,

Justices.

The People of the State of New York,
Respondent,

Motion No. **2022-04576**
Ind. No. 16183/16
Case No. 2022-02173

-against-

Luz Cruz,
Defendant-Appellant.

An order of the Appellate Term, First Department, having been entered on March 09, 2017, granting defendant a waiver of costs, fees and expenses on the appeal taken to this Court from a judgment of the Supreme Court, Bronx County, rendered on or about January 19, 2017, and assigning Seymour W. James, Esq., as predecessor to Twyla Carter, Esq., The Legal Aid Society, as counsel to prosecute the appeal; and a motion having been made to relieve such counsel, or in the alternative, to dismiss the appeal

Now, upon reading and filing the papers with respect to the motion, including the stipulation of the parties hereto, dated December 20, 2022, and due deliberation having been had thereon,

It is ordered that the motion is deemed withdrawn in accordance with the aforesaid stipulation.

ENTERED: March 03, 2026



Susanna Molina Rojas
Clerk of the Court